

HOUSE BILL No. 1386

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-31.5-2-195.6; IC 35-45-21-6.

Synopsis: Massage establishment liability insurance. Makes it a Class A misdemeanor if a person operates a massage establishment and knowingly or intentionally employs an individual who: (1) is providing massages; and (2) does not have certain professional liability insurance.

Effective: July 1, 2026.

Heaton, Bartlett

January 8, 2026, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1386

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 35-31.5-2-195.6 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 195.6. "Massage establishment",**
4 **for purposes of IC 35-45-21-6, has the meaning set forth in**
5 **IC 35-45-21-6(a).**

6 SECTION 2. IC 35-45-21-6 IS ADDED TO THE INDIANA CODE
7 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
8 1, 2026]: **Sec. 6. (a) As used in this section, "massage**
9 **establishment" means a facility where massage therapy is**
10 **provided. The term does not include the following:**

- 11 **(1) The office of a licensed health care practitioner (as defined**
12 **in IC 20-34-5-4), if the licensed health care practitioner**
13 **employs a massage therapist to perform massage therapy on**
14 **the patients of the licensed health care practitioner.**
15 **(2) A public lodging establishment, if the massage therapy is**
16 **provided for persons at the public lodging establishment.**
17 **(3) The residence of a massage therapist who provides**



1 message therapy at the massage therapist's residence, if the
2 massage therapist is the only person providing massage
3 therapy at the residence.

4 (b) A person who operates a massage establishment and
5 knowingly or intentionally employs an individual who:

6 (1) provides massages; and

7 (2) does not have professional liability insurance with
8 minimum coverage of two million dollars (\$2,000,000) per
9 claim and six million dollars (\$6,000,000) in aggregate;

10 commits a Class A misdemeanor.

